

Om Prakash v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Others

Allahabad High Court · Division Bench · 10 July 2006 · 2006 SCC OnLine All 2304 · Civil Misc. Writ Petition No. 35303 of 2006
 · Writ petition dismissed in limine on the ground of alternative remedy

HEADNOTE

The Electricity Act, 2003 read with Chapter 8 of the U.P. Electricity Supply Code, 2005 contains an exhaustive scheme for theft-of-electricity cases. Special Courts constituted under Section 153 are empowered under Section 154 to deal with both the criminal and the civil liability. Depositing the compounding fee results in the consumer being deemed acquitted of the offence of theft under Section 154, but it does not allow him to escape the civil liability, which has to be determined and adjudicated by the Special Court if the consumer is aggrieved. Having an adequate alternative remedy, the writ against a theft/compounding matter was dismissed in limine.

HOLDING-UNITS

INTERPLAY · EA2003::154

Compounding = deemed acquittal of the offence, but civil liability survives (Special Court)

QUESTION

Does depositing the compounding fee end the matter, or does civil liability survive to be adjudicated elsewhere?

HOLDING

Depositing the compounding fee means the consumer is deemed acquitted of the theft offence under s.154, but it does not extinguish the civil liability, which is to be determined and adjudicated by the Special Court (constituted under s.153, empowered under s.154 to deal with both criminal and civil liability). The consumer having an adequate alternative remedy, the writ was dismissed in limine. ¶ 2-5

LIMITING FACTS

Surprise checking on 15.2.2006 suspecting theft; consumer deposited Rs. 50,000 as compounding; an earlier writ had been withdrawn to pursue the statutory remedy.

PRINCIPLE TAGS

compounding-fee-does-not-extinguish-civil-consumption-dues Payment of the compounding fee is a deemed acquittal of the theft offence but does not discharge the civil liability, which the Special Court adjudicates; the consumer is relegated to that statutory remedy. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE QUANTUM OF CIVIL LIABILITY / WHETHER THEFT OCCURRED

Left to the statutory adjudication (Special Court); the writ court found only that an adequate alternative remedy exists. ¶ 3-5